ii). It is morally good; when the legitimate punisher gives the culprit a stern punishment what that person deserves; no matter whether the punitive action against wrong doers is compared with others or not, the punishment is necessary as moral good.

iii). It does not encourage punishing the innocent intentionally and also disapproves inflicting large punishments on wrongdoers disproportionately.

Even though, the idea of retributive justice played vital role in theorizing punishment and Justice for some time, some of its pivotal features such as proportionality, normative status of suffering and the ultimate justification for retribution become highly contentious.

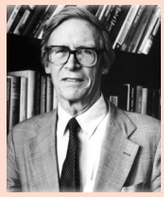
Retributive justice as a modes operandi to establish justice was firmly rejected in our constitution itself. The architects of our constitution firmly believed that violent methods will not bring in peaceful and enduring solutions to our problems nor does it establish sustainable Justice in our society.

13.5 John Rawls Theory of Justice

John Rawls is considered as one of the finest political philosophers of 20th century. He developed the theory of Justice based on the paradigm called Justice as Fairness. His framework treats all personal attributes as being morally arbitrary; therefore Justice for him demands equality. For him 'all social values including liberty, opportunity, income, wealth, self-respect are to be distributed equally. In other words, injustice is 'simply inequalities that not to the benefit of all'. If/when any action/attribute of an individual that does not benefit all actually signifies inequality and unfair/unjust character of a society. This perspective compels us to have a more comprehensive understanding of Justice itself.

Impotant works of John Rawls

- Theory of Justice - 1971
- Die Idee Des Politischen liberalismus - 1993
- Justice as fairness - 1985
- The law of People - 1993



The ethics of reason will create, for Rawls, a new political structure in which people will think of polices not to optimize their self interests but rather envisage society as a whole. This comprehensive and holistic perspective embedded in Rawls' framework makes it highly pertinent while debating on Justice. That is to say, it would be in the interest of all sections of the society as a whole must benefit from the policies and rules; not for an exclusive section of a society. Such fairness would be the outcome of rational action not benevolence or generosity. John Rawls theory premises upon the arrival of quintessential modern, rational beings to realize the spirit of Justice in our society; a society like ours wherein non-rational identities and sentiments play a major role in organizing the society, may have to toil to truly understand the spirit of Justice as emulated by John Rawls.

DO YOU KNOW?

Migrated people are also having certain rights in the alien nations. Refugees, migrated and exiled are also exercising vital rights. The member nations of UN recognized those vital rights.

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